

And in such a case it will make no difference, that the third mortgagee had notice of the second mortgage; for he is still entitled to the same protection."

In cases arising upon titles acquired prior to the operation of the above Statute, the same doctrine will still apply; but to no other cases. As regards judgments unregistered, they are of course cut out by a registered deed under the above Act, whether or not it be true that a judgment creditor, whose judgment is not registered, has a right to redeem—a question on which there is here some difference of opinion. The better opinion seems to be that a judgment creditor, who has placed his writ against lands in the Sheriff's hands, has a right to redeem a prior mortgage, and should be a party to a bill to foreclose; although it has been otherwise decided by Mr. Vice Chancellor Jameson. But of course under the above Act, such a creditor, neglecting to register his judgment, can be completely shut out by a subsequent encumbrancer who registers.